

Patricia Barkaskas April 2011

Endnotes

on a Human Rights

Atrocity

I want to believe...

That I do not live in a country...

where people simply watch as a young woman is murdered
alone, on a cold floor, from self-induced asphyxiationⁱ
because she *is out of control*
(wasn't she asking for it?ⁱⁱ)
because she *will not comply*
because she *is crying out for help*
but it's her own fault; no one should listen to some crazy girl who screwed up her
lifeⁱⁱⁱ

where the slow erosion of human rights
depends on the processes of democracy at work^{iv}
because we
(isn't that the way democracy works?^v)
are without empathy
because we *have no compassion*
because criminals *deserve what they get*
and it does not matter, most of them are white trash, terrorists, or Indians anyway^{vi}

where babies are forcibly removed from their mothers
lips still wet with breast milk^{vii}
because those *are bad women*
(wait, we are talking about res schools; Ministry apprehensions; prostitutes...?)
because prisoners *are not entitled to be mothers*
because prisons *are no place for children*
but they're all "crack babies" or FASD kids and they need to be rescued, so it's really
for the best^{viii}

where civil disobedience is not tolerated
even though it's peaceful, organized, expression of freedom of speech^{ix}
because convicts *do not get a voice*
(doesn't our *Charter* protect freedom of speech even when it's a personal expression
that amounts to hate speech?^x)
because they *are not worthy of more than basic necessities for survival*
because offenders *are all stupid and totally fucked up*
and obviously no one should listen to what a murderer, rapist, or pedophile has to
say^{xi}

where a man being beaten to death in his bed
and another man being almost beaten to death – with baseball bats – is okay^{xii}
because *criminals deserve to be punished*
(I thought we abolished the death sentence – how is this different, really?)
because *it is okay if they get what's coming to them*
because *retributions a bitch, darling*
and if we let them the better ones will just kill the worse ones off for us^{xiii}

where being a convict, prisoner, offender, accused person, criminal, lawbreaker,
villain, malefactor, wrongdoer, delinquent, miscreant, culprit, felon, jailbird, hood,
con, malfeasant...
means you are not worth the skin you were born in
because you *are without worth*
(what about justice; human rights; human dignity; restitution and rehabilitation;
empathy; forgiveness; grace; compassion; love...?)
because you *do not have the same rights as everyone else*
because you *cease to have meaning upon the utterance of the word "guilty"*
but nobody needs to concern themselves with what happens once you leave the
courtroom – after that it's just desserts for you!

I want to believe...

That I do not live in a country...

Where prisoners do not have basic human rights.^{xiv}

But I do.

ⁱ On October 19, 2007 Ashley Smith choked herself to death at Grand Valley federal institution while 7 guards outside her prison cell watched.

ⁱⁱ Ashley's story is tragic and horrible, but her life was not always that way. She had loving parents; she came from a "good home." But, what if she hadn't? Would the events that unfolded make sense to us then? Would we be okay with her death if she had been from a "bad family?"

The system calls solitary confinement for unstable prisoners "therapeutic quiet time." Ashley spent almost all of her time in prison in solitary confinement – she spent 23 hours a day in "the hole." She was alone, for hours, for days, for weeks at a time. There were over 800 documented incidents involving Ashley. She was a 14-year old girl, a child, when she first entered the system. She was 19-years old, still a child, when she died. She would often pretend to strangle herself in order to get attention. In one incident, the guards entered her cell, removed her, forced her to her knees, and then put her in the "wrap." They placed her in a full body, cocoon-like contraption, including a helmet, which prevented her from moving. She was forced to lie in it, in her own urine, for hours. At one point she was tasered twice within the space of a month. She was regularly denied: a mattress to sleep on; blankets; toilet paper; pads or tampons when she was menstruating...

Descriptions of Ashley:

"out of control"

"a time bomb waiting to go off"

"would not comply"

"defiant as ever"

The federally appointed correctional investigator says it is "unsafe and inhuman" to lock mentally ill prisoners in solitary.

The Canadian Correctional Services tried to stop Fifth Estate from publicly airing the videos of Ashley's time in the federal prison system. They had to get a court order to show the videos.

150 "Use of Force Reports" were produced on Ashley. At Grand Valley prison she broke the record for these reports. In a Management Plan for "A. Smith" from Grand Valley there are instructions from the Warden to not intervene if Ashley was choking herself – until and unless it was clear that she was not breathing.

In Ashley's 11 months in the federal systems she was transferred 17 times between 9 institutions in less than a year. She lost 90 lbs. in less than 9 months, she lost sight in one eye, she was strangling herself so often the veins in her face were broken – Ashley never received meaningful mental health treatment. Federal corrections were supposed to review a file after a prisoner is in segregation for 60 days, but in order to avoid this they

moved Ashley from prison to prison often enough to ensure that the 60-day clock would start again, over and over.

And, the best Canada could offer Ashley was a horrible death, alone, on the floor of a segregation unit cell.

Sources:

“Out of Control,” *Fifth Estate*: http://www.cbc.ca/fifth/2009-2010/out_of_control/

“The Ashley Smith Report,” A Report of the New Brunswick Ombudsman and Child and Youth Advocate on the services provided to a youth involved in the youth criminal justice system, Published by the Office Ombudsman and Child and Youth Advocate, June 2008

For more information about prisoners who have died on Correctional Services Canada’s watch please see: “Deaths In Custody: Final Report,” Submitted to the Office of the Correctional, prepared by Thomas Gabor, Ph.D., Professor of Criminology University of Ottawa, February 28, 2007

- ⁱⁱⁱ According to the September 2010 Review of Correctional Service of Canada’s Mental Health Strategy Implementation prepared by John Service, PhD.
(under contract for the Office of the Correctional Investigator of Canada) report: “Under Warrant
A Review of the Implementation of
the Correctional Service of Canada’s
‘Mental Health Strategy’”
Prepared for the Office of the
Correctional Investigator of Canada

“At admission 11% of federal offenders had a mental health diagnosis, 21.3% were prescribed psychiatric medication and 14.5% of male offenders had a past psychiatric hospitalization. Female offenders are twice as likely as male offenders to have a mental health diagnosis at admission. (Correctional Service of Canada, 2009j). The suicide rate for federal offenders is more than seven times the Canadian average while the number of serious self-harming incidents in prisons is rising. The mental health needs of offenders exceed the capacity, services and supports of the federal correctional authority to meet the growing demand.”

Despite these facts,
“It is noted that health services, including mental health care for federal offenders, are not covered by the *Canada Health Act*, Health Canada or provincial/territorial health services. The Service assumes full responsibility for the mental health care of offenders under federal

jurisdiction.”

“Under Warrant
A Review of the Implementation of
the Correctional Service of Canada’s
‘Mental Health Strategy’”
prepared by John Service, PhD.
under contract for the Office of the Correctional
Investigator of Canada
Prepared for the Office of the
Correctional Investigator of Canada
September 2011
at 7.

iv **human right**

noun

(usually **human rights**)

- a right which is believed to belong to every person: *a flagrant disregard for basic human rights*

democracy

Pronunciation: /dɪ 'mɒkrəsi/

noun (plural democracies)

[*mass noun*]

- a system of government by the whole population or all the eligible members of a state, typically through elected representatives: *a system of parliamentary democracy*
- [*count noun*] a state governed under a system of democracy: *a multiparty democracy*
- control of an organization or group by the majority of its members: *the intended extension of industrial democracy*
- the practice or principles of social equality: *demands for greater democracy*

Origin:

late 16th century: from French *démocratie*, via late Latin from Greek *dēmokratia*, from *dēmos* 'the people' + *-kratia* 'power, rule'

Source: Oxford Dictionary online

^v The Conservative government, under Stephen Harper's leadership, has consistently eroded prisoner's human rights in Canada. The Harper government is responsible for *Bill C-25 – Truth in Sentencing Act*, which came into effect in February of 2010. The *Act* changed the policy on credit given for time served prior to sentencing. The *Bill* mandates that judges can only award equal credit for time served in custody while awaiting trial at conviction. The only exception to this is in special circumstances when they submit written reasons in an attempt to have 1.5 pre-sentence time credited for an individual. An internal report has indicated that this affects low-income, illiterate, and Aboriginal offenders more than others serving time. A July 2009 preliminary report conducted by Justice Canada cited that in 582 cases of people awaiting trial across Canada, those held in custody in Winnipeg and Whitehorse had to wait longer for their trial dates than in-custody accused in Vancouver and Toronto.

More recently, the Conservatives have petitioned for the passing of *Bill S-10, An Act to amend the Controlled Drugs and Substances Act and to make related and consequential amendments to other Act*. *Bill S-10* is part of a "tough on crime" agenda being lauded by Harper. Critiques of the *Bill*, which proposes a mandatory six-month sentence for possessing as few as six marijuana plants – the same sentence that would be applied to a trafficker with 200 plants – saying that it will disproportionately affect Canadians between the ages of 18-25.

(IT IS IMPORTANT TO NOTE THAT QUESTIONS ABOUT THE COSTS OF IMPLEMENTING *BILL S-10* AND THE CONSERVATIVE'S REFUSAL TO PROVIDE INFORMATION ABOUT SPENDING ON THEIR PRISON REFORMS AND FINANCIAL COSTS FOR THEIR "TOUGH ON CRIME" AGENDA CAUSED THE CONSERVATIVES TO BE FOUND IN CONTEMPT OF PARLIAMENT. ONE MIGHT ASK ONESELF: HOW IS A GOVERNMENT THAT WAS FOUND IN CONTEMPT OF PARLIAMENT STILL RUNNING IN AN ELECTION? ISN'T THAT A CRIME? SHOULDN'T HARPER HAVE TO STEP DOWN IN ORDER TO BE ACCOUNTABLE TO THE DEMOCRATIC PROCESS? ISN'T THAT HOW DEMOCRACY WORKS?)

Further, as a part of his campaign promises Harper has said that he will package 11 crime bills the Conservatives tried to introduce and create an omnibus bill. The bill includes changes to criminal law dealing organized crime, eliminating house arrest and pardons. He has also told Canadians that he will push the bill through in, if the Conservatives receive a majority, in the new governments first 100 days in power.

Sources:

"Aboriginals, poor hit hardest by Tory sentencing law: internal report," *Globe and Mail* Saturday, September 25, 2010

<<http://www.theglobeandmail.com/news/politics/aboriginals-poor-hit-hardest-by-tory-sentencing-law-internal-report/article1726075/>>

Ian Brown, "What are Canadians really afraid of when it comes to crime?" *Globe and Mail* Saturday, April 9, 2011

<<http://www.theglobeandmail.com/news/politics/what-are-canadians-really-afraid-of-when-it-comes-to-crime/article1978257/singlepage/#articlecontent>>

Liberal Party of Canada

<<http://www.liberal.ca/newsroom/news-release/liberals-oppose-bill-s10-conservatives-hide-mounting-prison-costs/>>

^{vi} A personal note about Indians: I am of Métis and Cree (non-status) heritage. There are people in my family who have been to jail. I have visited a family member in prison. All of this has an affect on the way that I think about prison, prisoners, and human rights. The history and present day realities of colonialism and genocide in Canada create a unique position for Aboriginal peoples in this country. The colonial project continues to have lasting impacts on Indigenous peoples. According to a 2009 report for the Office of the Correctional Investigator, "Good Intentions, Disappointing Results: A Progress Report on Federal Aboriginal Corrections:"

Aboriginal over-representation has grown in recent years: between 1998 and 2008, the federal Aboriginal population increased by 19.7%. Moreover, the number of federally incarcerated Aboriginal women increased by a staggering 131% over this period.

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Further, the Indigenous population in prison is markedly different than that of non-Aboriginal offenders: they are younger, with almost 50% being under the age of 30; they have more likely served time already – either as youths or adults; they often have addictions or health issues; they are more likely to be involved in gangs; and many of them suffer from specific mental health issues or Fetal Alcohol Spectrum Disorder.² Section 80 of the *Corrections and Conditional Releases Act* creates a statutory obligation to provide special programs for Aboriginal offenders, but Correctional Services Canada has not made culturally appropriate programs available to Aboriginal offenders. Further, correctional programs for inmates are extremely limited across the board: "(t)here remains limited access in the community, especially for women and Aboriginal offenders.³ Indigenous women's programs in particular, especially in the Atlantic, Ontario, and Quebec regions, are without proper implementation.⁴

Section 718.2(e) of the *Criminal Code of Canada* is a statutory provision that outlines *Gladue* principles – these are considerations, particularly as applicable to Aboriginal offenders, of circumstances that should be taken into account with regard to options other than imprisonment to achieve the goals of restitution, rehabilitation, and general deterrence.⁵ This perspective sentencing was upheld by the Supreme Court of Canada in

R. v. Gladue, in 1999. Since *Gladue* “subsequent case law has indicated that *Gladue* principles are engaged whenever a decision-maker is dealing with liberty of an Aboriginal person at any stage of the justice system and is not only limited to the sentencing process.”⁷ And yet, regardless of “promising policy statements,” *Gladue* considerations are not being taken into account when staff deal with Aboriginal peoples, nor is CSC unable to articulate how staff will address these in the future.⁷

¹. “Good Intentions, Disappointing Results: A Progress Report on Federal Aboriginal Corrections,” prepared by Michelle M. Mann B.A., LL.B. for the Office of the Correctional Investigator, October 2009 at 6.

². *Ibid.*

³. *Ibid.* at 13.

⁴. *Ibid.* at 14.

⁵. *Criminal Code of Canada* (R.S.C., 1985, c. C-46)

⁶. The Supreme Court of Canada decided in the 1999 case, *R. v. Gladue*, that the provision exists to help ameliorate the overrepresentation of Indigenous peoples in prisons and that the systemic factors that affect Aboriginal peoples need to be considered during sentencing. *R. v. Gladue*, [1999] 1 S.C.R. 688

⁷. “Good Intentions,” *supra* note 1 at 20.

vii In April 2008

MOTHERS

at the Alouette Correctional Centre located in Maple Ridge, British Columbia were no longer permitted to provide care for their

BABIES

In an obscene gesture of cruelty and disregard the mothers-baby program at the facility was cut. The Honourable Mary Ellen Turpel-Lafond, British Columbia Representative for Children and Youth, responded by asking the provincial ministries involved in program delivery to find a way to allow women in prison to raise their babies.

“Roughly half the inmates in B.C.'s only jail for women have children under the age of four, and research suggests there would be ‘remarkable’ health and social benefits if they could have remained with their mothers, says B.C.'s children's advocate.”

Source: “Female inmates fight to keep their babies,” *Vancouver Sun* Thursday, March 5, 2009

<<http://www.canada.com/vancouvernews/news/westcoastnews/story.html?id=9ccc3897-9126-46d7-9d94-90560fb2841e>>

As a result of the program being cut, five women who were present or former inmates at Alouette and who had participated in the program filed a writ in British Columbia

Supreme Court in an attempt to have the mother-baby program reinstated. The women claimed that:

**“THE BC GOVERNMENT CANCELLED THE (MOTHER-BABY) PROGRAM
WIHTOUT JUSTIFICATION AND WITHOUT REGARD TO THE
CONSTITUTIONAL RIGHTS OF THOSE AFFECTED BY ITSELF
CANCELLATION.”**

**“FURTHERMORE, IT (THE WRIT) SAYS, THE EFFECT OF THE
CANCELLATION IS TO ‘SYSTEMATICALLY DISCRIMINATE AGAINST
ABORIGINAL WOMEN, WHO AS A RESULT OF PREVIOUS GOVERNMENT
POLICIES HAVE SUFFERED DISPROPORTIONATELY FROM
GOVERNMENT INTERFERENCE.’”**

Source: “Inmates sue for the right to care for their babies,” The Vancouver Province
Wednesday, November 19, 2008

<<http://www.canada.com/theprovince/news/story.html?id=2b5d6cb4-ae9-4d48-86f7-b636be0d781b>>

viii On March 8, 2005 the Canadian Association of Elizabeth Fry Societies (CAEFS), Native Women's Association of Canada (NWAC) and Strength in Sisterhood Society (SIS) made public a joint press release entitled, “More Promises to Women not Kept.” The press release was in response to a complaint filed to the Canadian Human Rights Commission (CHRC) on March 8, 2001 by CAEFS and NWAC, with the support of over 25 other organizations, and requested that the CHRC to review and file a report about discriminatory treatment of women in federal prisons in Canada. In 2004 the CHRC released the special report: *Protecting Their Rights: A Systemic Review of Human Rights in Correctional Services for Federally Sentenced Women*. The press release stated:

The complaint was filed on behalf of all women serving federal terms of imprisonment, on the grounds that the manner in which the women prisoners are treated is discriminatory, contravening s. 3(1) of the *Canadian Human Rights Act*. “On January 28, 2004, when the Canadian Human Rights Commission (CHRC) released its special report regarding the systemic discrimination an human rights violations experienced by women prisoners in Canada, entitled, *Protecting Their Rights: A Systemic Review of Human Rights in Correctional Services for Federally Sentenced Women*, we commended the Commission for its work and welcomed their demand that CSC act immediately to accommodate women’s needs.” (quoted: Dr. Alisa M. Watkinson, President of CAEFS)

However, after the report was made public the CHRC took no further action on this issue.

According to the CSC website, the webpage entitled “The Transformation of Federal Corrections for Women,” (last updated 2008-03-07) the following is reported about the CSC’s mother-baby programs:

The Transformation of Federal Corrections for Women

What Has Happened Since 1990?

Implementation of the Task Force Recommendations

about their goals and achievements with regard to task force recommendations in 1990

Since endorsing the task force report in 1990, CSC has been working to implement the recommendations it contained. While we can debate how well the Service has realized the vision of Creating Choices, it has adopted a fundamentally different concept of effective corrections for women offenders.

in which the implementation of the mother-baby was discussed as a success.

Mother-Child Program

In accordance with one of the task force recommendations, CSC has developed a mother-child program to foster positive relationships between mothers and their children. This program enables children to stay with their mothers while incarcerated, provided that the program is considered to serve the best interests of the child (including physical, emotional, and spiritual well-being).

The mother-child program was first piloted at the Okimaw Ohci Healing Lodge in July 1996. The other regional facilities started implementing the program in 1998.

SO WHY WAS THE MOTHER-BABY PROGRAM CUT? IF IT WAS A PROGRAM THAT WAS MEETING THE CSC’S MANDATES AND RESPONDING TO THE NEEDS OF THE MOST VULNERABLE PRISONERS

**– WOMEN, INDIGENOUS WOMEN, MOTHERS –
AND IT WAS WORKING... IT WAS CONSIDERED A SUCCESS!
WHY? WHY WERE BABIES TAKEN FROM THEIR MOTHERS...?**

~~(AND WHY ARE THEY MISLEADING THE PUBLIC ABOUT IT???)~~

Source: Correctional Service Canada online, <<http://www.csc-scc.gc.ca/text/pblct/choix/2-eng.shtml>>

Link To Correctional Service of Canada Report:

[CSC Action Plan in Response to the Report of the Canadian Human Rights Commission](#)

Further Info on prisonjustice.ca, including information on and links to the original CHRC report: [See Articles Section: Women](#)

^{ix} I heard an inmate tell a story about his freedom of speech being .

He told us about an experience whereby he and other prisoners had their right to peacefully demonstrate against unwanted reforms and/or for certain liberty rights and the respect of their human dignity was quelled by pressure from CSC and the warden. I heard this story on a visit to Matsqui Institution, a medium security prison in Abotsford, British Columbia in the spring of 2011 with my Penal Policy class, taught by Professor Michael Jackson, Q.C. at UBC Law. We had been invited to attend the prison and hang out with prisoners who wanted to meet with us in order to that they could discuss issues that are important to them about their experiences with the legal system and in the

Canadian industrial prison complex.

(I use this term purposefully to speak to the growth and change of the penal system in Canada under the Conservatives into something that looks

remarkably similar to the failed system in the USA /

I also acknowledge that my critique of this term is deeply informed by the work of

Angela Davis and

Andrea Smith, a Native American Cherokee legal activist and scholar, and her critique of the US system and its

negative impact on American Indians –

for example see: “Anticolonial Responses to Gender Violence,”

Chapter 7 in *Conquest: Sexual Violence and the American Indian Genocide*,

(South End Press: Cambridge, MA, 2005))

^x ***R. v. Keegstra*, [1990] 3 S.C.R. 697**

*Note: although the Supreme Court of Canada ultimately held that s. 319.2 of the *Criminal Code of Canada* was justified in its infringement on freedom of speech per s. 2(b) of the *Charter of Rights and Freedoms*, they also said that hate speech was protected under s. 2(b) of the *Charter*. Further, the Court also said that equality rights and multiculturalism vis-à-vis ss. 15 and s. 27 of the *Charter* respectively did not apply in analysis of the scope of s. 2(b).

^{xi} Wait . . . all prisoners are
not these *things*? Even if they are –

don't they deserve to protest
peacefully and speak up for their
rights?

^{xii} Professor Michael Jackson, Q.C. related to our Law 401D, Penal Policy class the story of the Mountain Prison riot on Saturday March 29, 2008. A part of that story was another story – the story of Michael Andrew Gibbon, who was beaten to death with baseball bats in his cell on his bed by other inmates during the riot. Mr. Gibbon's cellmate, Brian Abrosimo, was also beaten extensively by prisoners with baseball bats during this incident. Mr. Abrosimo survived. His story has not yet been told.

Sources:

Michael Jackson, Q.C. as part of Law 401D, Penal Policy, taught by Professor Michael Jackson, Q.C. at the University of British Columbia, Faculty of Law in spring 2011

Inmate Killed in BC Prison Riot, *CBC News* Sunday March 30, 2008
<<http://www.cbc.ca/news/canada/british-columbia/story/2008/03/30/bc-prison-riot.html?ref=rss>>

^{xiii} What
if
“Us”
and
“Them”
are
the
same?

the horror

^{xiv} *First, a prisoner's dignity and worth as a human being must be respected through the entire course of his or her imprisonment. Second, the loss of liberty through the fact of*

incarceration is punishment enough. Third, prisons should not be punishing places; rather, they should help prisoners rehabilitate themselves.

– Jackson, Michael
summarizing a 1998 CSC report
that suggested that three fundamental human rights principles emerge from the
ninety-five individual articles of the Standard Minimum Rules.

Source:
JUSTICE BEHIND THE WALLS
Section 02.1
CONCLUSION: HUMAN RIGHTS AND THE PRISON AT THE BEGINNING OF
THE TWENTY-FIRST CENTURY
at page 1 of 4.